

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Opoku-Agyemang	Team: Squad #05	CCRB Case #: 201502327	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 03/21/2015 9:49 PM	Location of Incident: Tilden Housing Development	18 Mo. SOL 9/21/2016	Precinct: 73		
Date/Time CV Reported Sat, 03/21/2015 11:43 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/30/2015 11:05 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Fortunato	27771	954820	PBBN
2. Officers			
3. POM Nelson Reyes	27566	953309	073 PCT
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jose Vega	05334	954398	PBBN
2. SGT Omar Birchwood	01886	945512	PSA 2
3. POM Rafael Figueroa	25243	948336	073 PCT
4. SGT Matthew Cahill	01163	932397	073 PCT
5. POM George Allen	06387	944517	073 PCT
6. POM Michael Kalish	10483	949156	073 PCT
7. POM Jorge Castro	09689	952559	073 PCT
8. SGT Yancy Blowe	02316	932134	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Nelson Reyes	Abuse: PO Nelson Reyes stopped § 87(2)(b)	A . Substantiated
B . POM Nelson Reyes	Discourtesy: PO Nelson Reyes spoke discourteously to § 87(2)(b)	B . Alleged Victim Uncooperative
C . Officers	Abuse: Officers stopped § 87(2)(b)	C . Officer(s) Unidentified
D . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	D . Officer(s) Unidentified
E . POM Michael Fortunato	Force: PO Michael Fortunato used physical force against § 87(2)(b)	E . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
F . Officers	Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)	F . Officer(s) Unidentified

Case Summary

§ 87(2)(g)

At approximately 9:49 p.m. on March 21, 2015, § 87(2)(b) and § 87(2)(b) were part of a group of young men and women walking around the vicinity of the Tilden NYCHA Housing Development in Brooklyn (BR01). PO Nelson Reyes and PO Daniel Berardi of the 73rd Precinct observed the group and PO Reyes approached the group. The members of the group began to run, going in different directions. PO Reyes pursued and stopped § 87(2)(b) (**Allegation A**), allegedly calling § 87(2)(b) a “little fucker” as he caught up to him (**Allegation B**). During the pursuit, PO Reyes made a radio transmission that was broadcast as a “10-85” request for assistance. A large number of plainclothes and uniformed officers from the 73rd Precinct, PSA 2, ESU, and Patrol Borough Brooklyn North (PBBN) responded to the vicinity of the Tilden Houses in regards. As PO Reyes arrested § 87(2)(b) and transported him to the 73rd Precinct stationhouse, some of the newly arrived officers pursued some of the other members of the group. Unidentified officers pursued § 87(2)(b) (**Allegation C**) and one of them allegedly stated, “Catch that bitch” (**Allegation D**). The officers caught § 87(2)(b) and he was taken to the ground and handcuffed. While officers were handcuffing § 87(2)(b) § 87(2)(b) was nearby. An unidentified officer grabbed § 87(2)(b) and he pulled away. Multiple unidentified officers grabbed § 87(2)(b) and pushed him to the ground and handcuffed him. During the handcuffing of § 87(2)(b) PO Michael Fortunato of PBBN punched § 87(2)(b) in the arm at least once (**Allegation E**). Unidentified officers allegedly punched and kicked § 87(2)(b) in the face (**Allegation F**). § 87(2)(b) suffered cuts, bruising, and swelling to his face (BR02 - 11).

§ 87(2)(b) and § 87(2)(b) were arrested and taken to the 73rd Precinct stationhouse (BR12). § 87(2)(b) was charged with § 87(2)(a) 160.50 § 87(2)(b) was charged with § 87(2)(a) 160.50 § 87(2)(b) was charged with § 87(2)(a) 160.50.

The complaint was initially assigned to Inv. Cassandra Fendley. Following Inv. Fendley’s resignation from the Agency, the complaint was assigned to Inv. Alexander Opoku-Agyemang on July 27, 2015.

Cell phone video footage of this incident was obtained (BR13). The footage, however, contained no portion of the alleged FADOs. It showed the aftermath of § 87(2)(b)’s arrest, showing PO Fortunato walking him out of the Tilden Houses.

Mediation, Civil and Criminal Histories

On § 87(2)(b), § 87(2)(b) § 87(2)(b) the mother of § 87(2)(b) filed a Notice of Claim with the City of New York in regards to this incident, alleging that six NYPD officers assaulted him and seeking \$5 million as redress (BR14). This complaint was deemed unsuitable for mediation due to the arrests of § 87(2)(b) and § 87(2)(b) § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB case involving § 87(2)(b) and/or § 87(2)(b) (BR16).
- This is the first CCRB allegation against PO Fortunato, who has been a member of the NYPD for two years.
- PO Reyes has been a member of the NYPD for three years and has had six previous CCRB allegations in five cases with one substantiated allegation. In regards to CCRB case #201407314, a physical force allegation was substantiated against PO Reyes § 87(2)(g).

Potential Issues

On August 10, 2015, after several messages had been left for him with his guardian, § 87(2)(b) called the CCRB and provided a telephone statement. He scheduled an interview appoint but failed to appear and did not call to cancel or reschedule. § 87(2)(b) did respond to subsequent attempts to contact him to schedule a new appointment.

Neither § 87(2)(b) nor § 87(2)(b) could identify any of the individuals in their group or any of the witnesses to this incident beyond their first name or their nicknames and could not provide any contact information. § 87(2)(b) refused to identify the other males whom he observed officers chasing.

The video footage for this incident was found via a Facebook posting provided by § 87(2)(b). The CCRB sent messages via Facebook to the user who uploaded the video but he did not respond to these messages. § 87(2)(b) provided a first name, § 87(2)(b) and an address for the individual who posted the video. Letters were sent to § 87(2)(b) but he did not respond. § 87(2)(b) herself was not a witness to this incident but called the CCRB and had a witness, § 87(2)(b) provide a telephone statement in regards to the CCRB. § 87(2)(b) provided the first name, § 87(2)(b) and an address for another neighbor whom she believed to have witnessed this incident. Letters were sent to § 87(2)(b) but he did not respond.

Field work was conducted in regards to this incident on May 1, 2015 (BR17), and June 23, 2015 (BR18). No witnesses were found during the initial field work. A witness, § 87(2)(b) was found during the second field work and a statement was obtained from her.

Findings and Recommendations

Explanation of Subject Officer Identification

As per the estimates provided by the officers and civilians, up to approximately 50 uniformed and plainclothes officers from PSA 2, PBBN, ESU, and the 73rd Precinct responded to the scene of this incident. § 87(2)(g)

PO Reyes acknowledged having been the officer who initially approached the group and who chased and stopped § 87(2)(b) at Livonia Avenue and Osborn Street. § 87(2)(g)

PO Reyes stated that, during his pursuit, he made a radio transmission to the dispatcher, intended for his partner in order to notify him of his location. As per the statements of the other officers, this call was broadcast as a 10-85 request regarding a foot pursuit at the Tilden Houses. This initial transmission does not appear in the EVENT that corresponds to this incident or its recording. The EVENT that corresponds to this incident, EVENT #D15032122760 (BR19) and its corresponding recording (BR28), begin with the dispatcher requesting that the unit that had made the 10-85 call go over the air again. An officer from a 73rd Precinct SET team, believed, on the basis of his own statement, to be PO Reyes, responded that he was at Livonia Avenue and Osborn Street with an arrest and the 73rd Precinct SET sergeant, identified via the investigation as Sgt. Yancy Blowe, responded that he was going to respond to the location. As per PO Reyes, this was in regards to his stop and arrest of § 87(2)(b) and he proceeded to leave the scene and return to the 73rd Precinct stationhouse with § 87(2)(b). However, as this was occurring, a large number of officers responded to the Tilden Houses in regards and pursued some of the other males from the group. During these chases, an officer from the 73rd Precinct anti-crime team, believed by the investigation to be PO Rafael Figueroa, made a radio transmission that he was in pursuit of one of the individuals in the vicinity of 360 Dumont Avenue. PO Figueroa informed the CCRB that when he arrived at the scene in regards to the initial 10-85 call, he observed officers whom he did not know chasing an individual. He pursued the individual as well but eventually lost sight of the individual and never directly stopped any individuals.

Sgt. Blowe stated that he observed approximately 10 uniformed officers whom he did not know and believed to be from PSA 2 and PO George Allen of the 73rd Precinct chasing § 87(2)(b). Sgt. Blowe chased after them. At 265 Livonia Avenue, Sgt. Blowe observed § 87(2)(b) on the ground being handcuffed by PO Allen. Sgt. Blowe did not observe how § 87(2)(b) ended up on the ground. PO Allen was interviewed by the CCRB. PO Allen stated that he took a “chart day” on the incident date, was not on duty at the time of the incident, and had no knowledge of this incident. PO Allen’s memo book corroborated this (BR20) but the 73rd Precinct tour 1 Roll Call for March 22, 2015 (BR21), indicated that PO Allen was on duty on this date (the tour began at 8:00 p.m. on March 21, 2015, and ended at 4:35 a.m. on March 22, 2015). On October 14, 2015, a call was placed to the 73rd Precinct Roll Call Office and SPA Robinson confirmed that PO Allen had in fact taken the day off for the tour. As per Sgt. Blowe, once § 87(2)(b) was handcuffed, he requested that the officer who had made the 10-85 transmission respond to 265 Livonia Avenue to determine whether § 87(2)(b) was the individual he had been pursuing. PO Figueroa responded and affirmed that § 87(2)(b) was the individual whom he had pursued.

As per PO Reyes, while he was in the stationhouse processing the arrest of § 87(2)(b) PO Figueroa brought § 87(2)(b) to the stationhouse and informed PO Reyes that § 87(2)(b) was “one of [PO Reyes]’ arrests.” PO Reyes stated that he had not been present for the stop of § 87(2)(b) but that Sgt. Blowe assigned the arrest to him and informed him that § 87(2)(b) was being arrested for § 87(2)(a) 160.50.

§ 87(2)(b) could not describe the officers who chased and caught him. He alleged that one of them said, “Catch that bitch,” as they pursued him. The EVENT only specifically identified two anti-crime units from the 73rd Precinct, a 73rd Precinct SET post and sergeant, the 73rd Precinct Executive Officer, a helicopter, and two ESU units as having arrived at the scene. The investigation determined,

from the interviews of officers (including several officers whose units do not appear on the EVENT) that many more units than are noted on the EVENT responded to this incident.

§ 87(2)(g)

[REDACTED]

While § 87(2)(b) was being arrested, unidentified officers began struggling with § 87(2)(b) and took him to the ground. § 87(2)(b) alleged that he was kicked twice on his face and punched once on his face by an officer or officers whom he could not see. PO Fortunato, § 87(2)(b)'s arresting officer, joined the struggle to handcuff § 87(2)(b) once he was on the ground. PO § 87(2)(b) acknowledged punching § 87(2)(b) on the arm at least once. He also stated that he observed officers whom he did not know and could not describe punch § 87(2)(b) at least once in the face. He denied punching § 87(2)(b) in the face himself or kicking him. He did not observe any officers kick § 87(2)(b).

§ 87(2)(b) stated that she observed a uniformed white male with glasses whom she had seen exiting a vehicle with PSA2 written on it kick § 87(2)(b). As previously discussed, no units from PSA 2 are listed on the EVENT as having responded to the scene, though the investigation determined from the statements of civilians and officers, including one, Sgt. Omar Blackwood, from PSA 2, that officers from PSA 2 responded to the incident. The CCRB identified 25 white male officers who were on duty in the PSA 2 and assigned to uniformed assignments at the time of the incident (BR21). It was determined, however, through conversations with Sgt. Matthew Swartz of MAS, that the NYPD did not keep track of which officers wear glasses. He explained that, while the MOS photograph database has a record of officers who wear glasses, it only counts officers who wear glasses in their MOS photograph itself. A search of the MOS photograph database revealed that none of the 25 identified officers wore glasses in their MOS photographs.

Neither § 87(2)(b) nor § 87(2)(b) observed officers punching or kicking § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g)

Recommendations

Allegation A – Abuse of Authority – PO Nelson Reyes stopped § 87(2)(b)

The CCRB obtained a telephone statement from § 87(2)(b) on April 1, 2015 (BR22) and a sworn statement on April 6, 2015. § 87(2)(b) was interviewed on April 21, 2015. A telephone statement was obtained from § 87(2)(b) on August 10, 2015 (BR23). A telephone statement was obtained from § 87(2)(b) on May 8, 2015 (BR24) and a sworn statement was obtained from § 87(2)(b) on June 23, 2015. The CCRB interviewed PO Figueroa on May 21, 2105, PO Fortunato on June 2, 2015, Sgt. Birchwood on June 9, 2015, PO Allen and Sgt. Matthew Cahill and PO Michael Kalish of the 73rd Precinct on June 17, 2015, PO Reyes on June 24, 2015, PO Jorge Castro of the 73rd Precinct on June 25, 2015, and Sgt. Blowe on July 9, 2015.

§ 87(2)(g)

§ 87(2)(b) stated that he and approximately seven or eight acquaintances, including § 87(2)(b) and § 87(2)(b) had been walking around the neighborhood in the vicinity of the Tilden Houses for over 15 minutes. § 87(2)(b) provided the names of some of the rest of these acquaintances as § 87(2)(b). § 87(2)(b) did not know any of their full names or contact information. In the vicinity of 300 Dumont Avenue, § 87(2)(b) observed a uniformed officer approaching them. Some of his acquaintances began running, so § 87(2)(b) took off running as well.

§ 87(2)(b) like § 87(2)(b) stated that he was walking with his friends, including § 87(2)(b) and § 87(2)(b) in the vicinity of the Tilden Houses. He stated, however, that, in the vicinity of 265 Livonia Avenue, an unmarked car with plainclothes officers pulled up to the group, at which point § 87(2)(b) ran. The officers chased § 87(2)(b) and § 87(2)(b) ran after them. The officers caught up to § 87(2)(b) and arrested him.

§ 87(2)(b) stated that he was walking on Mother Gaston Boulevard, near the intersection with Dumont Avenue, when he observed a group of approximately six or seven young males running towards him. § 87(2)(b) knew these males but refused to provide their names to the CCRB. § 87(2)(b) stated that he was walking by himself and was not with these males. Upon seeing the males, § 87(2)(b) began running across Mother Gaston Boulevard and toward Livonia Avenue. After approximately 15 seconds of running, § 87(2)(b) stopped running and began walking back towards Dumont Avenue. At this point § 87(2)(b) observed PO Reyes running toward him. As he reached § 87(2)(b) PO Reyes called § 87(2)(b) “a little fucker” and grabbed the front of his jacket in the chest-area. § 87(2)(b) called PO Reyes a “little fucker” as well. PO Reyes and § 87(2)(b)

continued being “disrespectful” to one another but § 87(2)(b) could not specifically recall what they said to one another. PO Reyes maintained his hold of § 87(2)(b)’s jacket and § 87(2)(b) walked backwards approximately seven feet until his back was against a window. Once § 87(2)(b)’s back was against the window, PO Reyes turned him around, twisted his arm, and handcuffed him. At this time PO Berardi joined them. § 87(2)(b) stated that PO Berardi was “cool” and that the argument between he § 87(2)(b) and PO Reyes ceased once PO Berardi arrived.

PO Reyes stated that in the approximately 15 to 20 minutes prior to approximately 9:49 p.m. on March 21, 2015, he and PO Berardi were conducting surveillance for gang activity in the 73rd Precinct when he observed a group of approximately 25 to 30 males between the ages of approximately 15 to 21 years old. When PO Reyes first observed this group, his vehicle was on Dumont Avenue, going towards Rockaway Avenue from Mother Gaston Boulevard. PO Reyes observed the group for approximately 10 to 20 minutes. The members of the group “weren’t doing anything other than just walking.” PO Reyes stated that he was “very familiar with most faces” in that neighborhood and, in observing the group, he did not observe any of them to be from that neighborhood. PO Reyes drove towards the group in order to investigate what was going on. He stated that, normally, in order to investigate such a situation, he would approach the group, introduce himself, and ask them what was going on, and normally the members of the group would explain what they were doing.

When the group appeared to see PO Reyes’ vehicle, the individuals split up into three subgroups. One group ran north, two groups ran south, and one individual continued walking towards Rockaway Avenue, appearing to be avoiding looking at the officers. The individual was wearing a hooded sweatshirt with his hood drawn up over his head and with his hands in his pockets. PO Reyes did not observe any bulges on the individual. PO Reyes’ unmarked car continued in the same direction as the individual. The individual then stopped walking and “ducked” behind a large SUV. PO Reyes could not see the individual once he was behind the SUV.

PO Reyes remained in the car for approximately 30 seconds, waiting for the hooded male to reemerge. PO Reyes then exited from his car and went onto the sidewalk to look for the male. PO Reyes looked towards Rockaway Avenue but did not see the male. PO Reyes then looked back and saw the hooded male approximately 10 to 12 cars away, crawling towards Mother Gaston Boulevard. Once the male appeared to see PO Reyes on the sidewalk, he rose up and took off running. The hooded male ran south into the Tilden Houses compound, toward Livonia Avenue. PO Reyes ran after him. As he ran PO Reyes made a radio transmission to “central” and requested that a message be relayed to his partner, informing him that he was running southbound, towards the Riverdale Towers and Livonia Avenue. PO Reyes denied having made a 10-85 or 10-13 call for assistance or having put a description of any individuals over the radio. PO Reyes did not hear any other officer make a 10-85 call around this time. PO Berardi had remained in the car when PO Reyes exited and was not involved in the chase. PO Reyes did not observe any other officers around while he was pursuing the hooded male.

When asked why he pursued the hooded male, PO Reyes replied that the male “raised my suspicion, hiding behind the car, he had a hoodie on covering his face, he runs from us; I was just interested in knowing why is he running.” PO Reyes stated that his intent was to catch up to the individual and talk to him to find out what was going on. PO Reyes added that, “usually the procedure is, they’re gonna take off and as you’re running after them, they’re gonna drop a gun if they have it.”

In his telephone statement § 87(2)(b) alleged that PO Reyes called him “a little fucker” when PO Reyes caught up to him. § 87(2)(b) failed to appear for his CCRB interview and did not respond to subsequent attempts to contact him. PO Reyes denied having spoken discourteously during this incident. § 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Victim Uncooperative**.

Allegation C – Abuse of Authority – Officers stopped § 87(2)(b)

§ 87(2)(b) stated that, after he observed § 87(2)(b)'s arrest, He observed two other members of the group, one of whom he only knew by the name “Scarface” and the other whose name he did not know, being chased by unidentified officers. § 87(2)(b) walked away, towards the southeast corner of the Tilden Houses, accompanied by § 87(2)(b) and another female whom he only knew by the name § 87(2)(b). As they walked, the two females screamed for § 87(2)(b) to run because officers were about to grab him. § 87(2)(b) saw a group of officers running towards him and began to run again. As they chased him, § 87(2)(b) heard an officer say, “Catch that bitch.” Eventually § 87(2)(b) got tired and stopped running. At this point, officers grabbed him, took him to the ground, and placed him in handcuffs. § 87(2)(b) did not receive any injuries as a result.

§ 87(2)(b) and § 87(2)(b) both observed the end of the chase of § 87(2)(b) and provided accounts consistent with that of § 87(2)(b) but neither could describe the officers who caught § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Officers Unidentified**.

Allegation D – Discourtesy – An officer spoke discourteously to § 87(2)(b)

As previously discussed, § 87(2)(b) could not describe the officers who pursued him or the one who made the statement, “Catch that bitch” during the pursuit and the investigation could not identify the officers who began the pursuit of § 87(2)(b) or the officers who caught him. It is therefore recommended that **Allegation D** be closed as **Officers Unidentified**.

Allegation E – Force – PO Michael Fortunato used physical force against § 87(2)(b)

Allegation F – Force – Officers used physical force against § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) stated that he was about five feet away from § 87(2)(b) and the officers as they were arresting § 87(2)(b). Officers told § 87(2)(b) to move back but § 87(2)(b) remained and spoke to § 87(2)(b) telling him to not say anything. Officers

again told § 87(2)(b) to back up and he backed away. However, three unidentified uniformed officers approached § 87(2)(b) and one of the officers grabbed § 87(2)(b)'s hand. § 87(2)(b) pulled his hand away from the officer. One officer then grabbed § 87(2)(b)'s upper right arm and another officer grabbed the back of § 87(2)(b)'s neck. The officers then "threw" him to the ground. § 87(2)(b) landed in the grass on his chest with the right side of his face against the ground. § 87(2)(b) heard the officers telling him to stop resisting. § 87(2)(b) stated, however, he was not moving at all while on the ground. § 87(2)(b) felt a knee against his back, pushing his body into the ground. His right arm was stuck under his body and he could not move it because officers were on top of him. An officer had § 87(2)(b)'s left arm behind his back, but there was not yet a handcuff on his wrist. He also felt an officer holding his legs. Officers continued to tell § 87(2)(b) to stop resisting and he replied that he could not move his right arm.

The right side of § 87(2)(b)'s face was pressed into the ground he could not see to the right side of his body so he did not know who was on that side of him. He saw about five uniformed white males whom he could not describe in any detail to his left. § 87(2)(b) then felt a kick to his glasses near his left eye, causing his glasses to hang off of his face. He felt a second kick to his left eye, causing his glasses to fall off of his face. He then felt a closed fist punch his left eye. § 87(2)(b) did not see which officer(s) kicked and punched him. As a result of the kicks and the punch, § 87(2)(b) sustained a cut under his left eye, a cut to the left side of his nose, bleeding from the cuts and a black and swollen left eye. § 87(2)(b) also had a small cut to the right side of his face, but he was not sure how he sustained that injury because his face was against the ground the entire incident. § 87(2)(b) was treated later that night at § 87(2)(b), § 87(2)(a) PHL § 18(6)

§ 87(2)(b) stated that as he was being picked up from the ground, he noticed that § 87(2)(b) was on the ground surrounded by officers. He could not tell what was going on. He did not see officers using force against § 87(2)(b) but later, at the stationhouse, he observed § 87(2)(b) bleeding from his face with two black eyes. § 87(2)(b) informed § 87(2)(b) that an officer had kicked him. § 87(2)(b) and § 87(2)(b) later informed § 87(2)(b) of the same thing.

§ 87(2)(b) stated that § 87(2)(b) was approximately one foot from § 87(2)(b) as the officers were arresting § 87(2)(b). An officer told § 87(2)(b) to move and, when he started to back up, an unidentified uniformed white male with glasses grabbed him. § 87(2)(b) told the officer with glasses to get off of him and the officer pushed him to the ground. The officer with glasses kicked and then punched § 87(2)(b) in the face. There were about twenty officers around § 87(2)(b) at this time and approximately five of them were making physical contact with him. § 87(2)(b) did not recall whether she saw any officer aside from the one with the glasses punch or kick § 87(2)(b).

§ 87(2)(b) stated that she observed § 87(2)(b) "trying to help" a friend who was being arrested. § 87(2)(b) "would not back up" and approximately eight to nine officers grabbed him and pulled him down to the ground, causing § 87(2)(b) to land on his face. The officers then handcuffed § 87(2)(b). § 87(2)(b) initially stated that the officers "beat up" § 87(2)(b). Upon further questioning, however, she explained that it was the

officers pulling § 87(2)(b) down to the ground that she described as “beat up.” She did not see any officers kick or punch § 87(2)(b). The officers picked up § 87(2)(b) from the ground and walked him to a police car. At this point she observed that § 87(2)(b) was bleeding and his eye and glasses were “messed up.” § 87(2)(b) did not know what had caused these injuries. At this point § 87(2)(b) went to go get § 87(2)(b)s mother, with whom she went to the stationhouse.

§ 87(2)(b) stated that some of other young men whom he had seen running were brought to the stationhouse after him but he had not witnessed any of their arrests.

PO Fortunato stated that when he arrived at the scene, § 87(2)(b) was being picked up and placed into a police vehicle and a crowd of over 20 individuals had formed in the vicinity. Officers instructed the members of the crowd to back up. At this time PO Fortunato observed a group of uniformed male officers whom he did not know, he could not estimate how many, struggling with one of the individuals in the crowd, whom PO Fortunato later identified as § 87(2)(b) approximately 10 feet from § 87(2)(b).

At that time PO Fortunato did not know how or why the interaction between officers and § 87(2)(b) had begun. PO Fortunato stated that there were officers from both PSA 2 and the 73rd Precinct on scene and he did not know which command these officers were from. PO Fortunato had not seen § 87(2)(b) prior to this point. § 87(2)(b) was on his feet and officers appeared to be attempting to handcuff him. § 87(2)(b) appeared to be tensing his arms and the officers were giving § 87(2)(b) orders to stop resisting and to put his arms behind his back. The officers took § 87(2)(b) to the ground. PO Fortunato did not recall how § 87(2)(b) landed on the ground or what part of his body struck the ground. Once on the ground, § 87(2)(b) tucked his arms underneath his body and kicked his legs. PO Fortunato did not know whether his kicks struck any officers. PO Fortunato observed more than one officer, he could not estimate how many exactly, punch § 87(2)(b) “a couple of times...all over his body.” He saw punches strike § 87(2)(b)s face but he could not estimate how many did so. He did not observe any officers kick § 87(2)(b). PO Fortunato joined the officers struggling with § 87(2)(b) by attempting to pull his arms out from beneath his body. PO Fortunato then punched § 87(2)(b) on the elbow to attempt to get him to release his arm. PO Fortunato could not recall how many times he punched § 87(2)(b). PO Fortunato denied having punched § 87(2)(b) in the face or having kicked him. Approximately 30 seconds to 2 minutes later PO Fortunato was able to get § 87(2)(b)s arms and handcuffed them. PO Fortunato stated that, though he was the only officer to place handcuffs on § 87(2)(b) other officers, he could not estimate how many, were holding him as he did so. After handcuffing § 87(2)(b) PO Fortunato observed blood “all over” § 87(2)(b)s face. He saw cuts and bruises on § 87(2)(b)s face but could not specify where or how many.

After § 87(2)(b) was handcuffed, a PSA sergeant whom he did not know assigned PO Fortunato as the arresting officer due to the fact that he had been the one to handcuff § 87(2)(b). PO Fortunato replied that he had not caused the interaction with § 87(2)(b) and the sergeant replied, “Well, you’re fucking taking it.” PO Fortunato had not seen the housing sergeant prior to the handcuffing of § 87(2)(b) and the sergeant gave him no information on what had led to the interaction with § 87(2)(b). An unknown uniformed

officer, whom PO Fortunato believed to have been an officer assigned to PSA2 but whom he did not know, stated that he had observed § 87(2)(b) push officers and that that was what had led to his struggle with the officers. PO Fortunato had not seen the alleged pushing himself.

Sgt. Blowe stated that, as the arrest of § 87(2)(b) was occurring, he observed part of a second arrest approximately 25 to 30 feet away from him. He observed more than 10 uniformed officers from both Housing and the 73rd Precinct appearing to be arresting an individual. He recognized one of them as a male Housing Sergeant whose name he did not know. Sgt. Blowe did not know why the other individual was being arrested and had not observed this person prior to observing him being arrested. He did not see how the individual ended up on the ground. Sgt. Blowe stated that he could not see the exact physical movements of either the individual being arrested or of any of the uniformed officers because of the distance between he and them. Sgt. Blowe did not observe any officers punching or kicking this individual and denied having do so himself.

Sgt. Birchwood stated that, when he arrived at 265 Livonia Avenue, he observed § 87(2)(b) and § 87(2)(b) already in handcuffs, surrounded by a large number of officers. § 87(2)(b) was on the ground but was in the process of being lifted up by PO Fortunato. Sgt. Birchwood observed that § 87(2)(b) had a laceration near one of his eyes. Sgt. Birchwood did not observe how § 87(2)(b) suffered these injuries and never found out how. Sgt. Birchwood did not observe any officers punch or kick § 87(2)(b) nor did he himself punch or kick him. Sgt. Birchwood stated that when he first observed § 87(2)(b) he was already in handcuffs and was not resisting in any way. Sgt. Birchwood did not recognize any of the officers at the scene as being from PSA2 aside from himself and his operator. Sgt. Birchwood could not specifically recall any other officers in the vicinity aside from PO Fortunato.

PO Reyes, PO Figueroa and PO Kalish acknowledged having been in the vicinity of the incident but denied having observed any portion of § 87(2)(b)'s arrest. PO Allen and Sgt. Cahill denied having responded to the scene at any point.

Penal Law Section 35.30 (BR29) and Patrol Guide section 203-11 (BR30) hold that an officer is able to use physical force to overcome resistance in the course of effecting an arrest.

It is undisputed that § 87(2)(b)'s arm was underneath his body as officers attempted to handcuff him. It is undisputed that officers struck § 87(2)(b) on the face. § 87(2)(b) stated that his arm was stuck underneath his body because of the officers who were on his back and that he told the officers so. He stated that, while he pulled away from officers when they first grabbed him, he remained motionless once he was on the ground. PO Fortunato stated that he believed that § 87(2)(b) was intentionally holding his arms underneath his body and kicking his legs. PO Fortunato attempted to pull his arms out from beneath his body. PO Fortunato then punched § 87(2)(b) on the elbow to attempt to get him to release his arm. PO Fortunato denied having punched § 87(2)(b) on the face. § 87(2)(b) never alleged officers striking him anywhere else on his body aside from his face. As previously discussed the investigation could not identify the officers who punched and kicked § 87(2)(b) in the face.

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that
Allegation E be Unsubstantiated. § 87(2)(g) [REDACTED]
[REDACTED] it is recommended that **Allegation F** be closed as **Officers**
Unidentified.

Squad: 5

Investigator: _____ Alexander Opoku-Agyemang October 20, 2015
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date